

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Connie Villon	Team: Squad #08	CCRB Case #: 202310999	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 11/19/2023 12:00 PM	Location of Incident: 1708 West 12th Street	18 Mo. SOL 5/19/2025	Precinct: 62		
Date/Time CV Reported Tue, 11/21/2023 3:36 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/21/2023 1:30 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Vito Scalici	26392	965515	062 PCT
2. PO Shenming Luo	05970	968589	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Vito Scalici	Abuse: Police Officer Vito Scalici threatened to remove § 87(2)(b) to the hospital.	A . Substantiated
B . PO Vito Scalici	Discourtesy: Police Officer Vito Scalici acted discourteously toward § 87(2)(b)	B . Unfounded
C . PO Vito Scalici	Abuse: Police Officer Vito Scalici detained § 87(2)(b)	C . Within NYPD Guidelines
D . PO Shenming Luo	Abuse: Police Officer Shenming Luo detained § 87(2)(b)	D . Within NYPD Guidelines
E . PO Vito Scalici	Discourtesy: Police Officer Vito Scalici spoke discourteously to § 87(2)(b)	E . Substantiated
F . PO Vito Scalici	Off. Language: Police Officer Vito Scalici made offensive remarks to § 87(2)(b)	F . Substantiated
G . PO Shenming Luo	Abuse: Police Officer Shenming Luo improperly used his body-worn camera.	G . Substantiated

Case Summary

On November 21, 2023, § 87(2)(b) filed this complaint with the CCRB. (Board Review 01).

On November 19, 2023, at approximately 12:00PM, § 87(2)(b) was seated on the stoop in front of 1708 West 12th Street in Brooklyn. Police Officers Vito Scalici and Shenming Luo from the 62nd Precinct responded to a 911 call involving § 87(2)(b) and two other unidentified civilians. PO Scalici threatened to remove § 87(2)(b) to the hospital if she continued to refuse to provide her ID (**Allegation A - Abuse of Authority: Substantiated**). PO Scalici allegedly picked up § 87(2)(b) bag and threw it into the street (**Allegation B - Discourtesy: Unfounded**). PO Scalici and PO Luo detained § 87(2)(b) until EMS could arrive on scene and evaluate her (**Allegations C & D - Abuse of Authority: Within NYPD Guidelines**). PO Scalici told the individuals who called 911 that § 87(2)(b) was "fucking out of her mind" (**Allegation E & F - Discourtesy and Offensive Language: Substantiated**). PO Luo activated his body-worn camera for only the last minute and 15 seconds of the incident (**Allegation G - Abuse of Authority: Substantiated**).

§ 87(2)(b) was not arrested as a result of this incident.

The investigation obtained body-worn camera ("BWC") footage from PO Scalici and PO Luo from NYPD Legal. They are located in IA#24 (Board Review 02) and the videos are summarized in IA#38 (Board Reviews 03).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Vito Scalici threatened to remove § 87(2)(b) to the hospital.

Allegation (B) Discourtesy: Police Officer Vito Scalici acted discourteously toward § 87(2)(b).

Allegation (C) Abuse of Authority: Police Officer Vito Scalici detained § 87(2)(b).

Allegation (D) Abuse of Authority: Police Officer Shenming Luo detained § 87(2)(b).

Allegation (E) Discourtesy: Police Officer Vito Scalici spoke discourteously to § 87(2)(b).

Allegation (F) Offensive Language: Police Officer Vito Scalici made offensive remarks to § 87(2)(b).

Allegation (G) Abuse of Authority: Police Officer Shenming Luo improperly used his body-worn camera.

On November 30, 2023, § 87(2)(b) testified (Board Review 04) that on November 19, 2023, at approximately 12:00PM, four civilians approached her as she was waiting outside the Rite Aid located on Kings Highway and West 12th Street in Brooklyn. She thought they were following her, felt unsafe, and took a photo of one of the civilian's license plate. After getting into an argument with one of the civilians for spitting in their direction and called 911. PO Scalici and PO Luo responded before she finished her 911 call. § 87(2)(b) was seated on the front stoop of 1708 West 12th Street when they arrived. This was a residential building which § 87(2)(b) did not reside in.

§ 87(2)(b) thought the officers had followed her and were not there to help her. The officers said that the four civilians told them that § 87(2)(b) spat at their car earlier. § 87(2)(b) denied this, though she had spat in their general direction. § 87(2)(b) called the officers liars and argued with them. PO Scalici told § 87(2)(b) multiple times to stand up from the stoop she was sitting on, however, she refused. § 87(2)(b) then tried to call 911 again.

While on the phone, PO Scalici told § 87(2)(b) that she was not going to call anyone, grabbed her bag from her, and threw it into the street. PO Scalici spoke to § 87(2)(b) in a rude manner and told her to get off the steps again, and to answer any questions he asked. § 87(2)(b) refused, and asked if he was going to arrest her. PO Scalici said, "Okay we are not going to arrest you, but we will put you in the ambulance." PO Scalici walked over to where the four civilians stood and spoke to them, while PO Luo stood near § 87(2)(b). A woman with three big dogs exited the house § 87(2)(b) was seated in front of. § 87(2)(b) tried to get off the stoop, but PO Scalici told her that she had to remain seated because she did not listen to him when he first told her to get up from the steps. PO Scalici asked § 87(2)(b) what kind of "psych" medication she took and who was her psychiatrist. § 87(2)(b) refused to answer questions about her medical history. PO Scalici told her that she had to answer him because he believed she had a psychiatrist. PO Scalici then told § 87(2)(b) that he would call an ambulance for her, and they would determine if she was "psycho" or not. PO Scalici told PO Luo not to let § 87(2)(b) go anywhere. PO Luo held § 87(2)(b) hand until the ambulance arrived. § 87(2)(b) protested and told him not to touch her.

An ambulance arrived and PO Scalici told § 87(2)(b) that she was going with them. § 87(2)(b) refused to go. A male FDNY EMT told § 87(2)(b) that he had the right to ask her medical history related questions, but § 87(2)(b) refused to answer his questions. The male EMT then told § 87(2)(b) that they were going to take her to the hospital, but § 87(2)(b) refused. The male EMT told her that if she was not going to come with them to the hospital, then they were going to take her. § 87(2)(b) told him that she wanted to go home and was trying to leave but the officers had kept her from leaving. After going back and forth with the male EMT, he finally told § 87(2)(b) to leave, which she did. She was not arrested or removed to the hospital.

The investigation received PO Scalici's BWC video (**Board Review 02**). The video is 53:10 minutes long. At 00:55- PO Scalici and PO Luo are approached by two men (M1 and M2) and a male child. Someone tells PO Scalici that a woman is spitting on multiple people and that she took a photograph of his registration. He identifies § 87(2)(b) who is sitting on a stoop several buildings away from where the RMP had stopped. At 01:33- PO Scalici approaches § 87(2)(b) and asks her what is going on. § 87(2)(b) speaks in a loud tone over PO Scalici. PO Scalici tells § 87(2)(b) that the men told him § 87(2)(b) was spitting at him. § 87(2)(b) states that the men smell of marijuana, followed her, and scared her.

At 5:37- PO Scalici asks for § 87(2)(b) name and her ID, and she refuses to provide either. At 7:36- PO Scalici tells § 87(2)(b) to give him her ID because he is taking a report for harassment. He reiterates she is not under arrest but that he needs her ID. § 87(2)(b) replies she will give him the ID if he is going to prepare a report for harassment against the men too. PO Scalici starts walking towards the men and informs them a harassment report will be prepared but that no one will be arrested. At 9:37- PO Scalici returns to § 87(2)(b) and tells her she has two options: "Give me your ID or you're going to the hospital." PO Scalici tells PO Luo he is going to "EDP" § 87(2)(b). PO Scalici asks § 87(2)(b) if she is diagnosed with anything psychologically, if she is supposed to be taking medication for anything, and if she resides in the building. § 87(2)(b) repeatedly asks PO Scalici to give her "one second" as she types on her phone.

At 10:13- § 87(2)(b) holds her phone upright towards PO Scalici as if filming. She asks him to repeat what he said, and he replies that he told her he would take her to the hospital and was asking about her medications. He identifies himself and tells § 87(2)(b) what she is doing is "not normal behavior" and that she is spitting at multiple people. PO Scalici repeatedly tells § 87(2)(b) to get off the property and that she is causing a disturbance to the neighborhood. § 87(2)(b) then takes a phone call. At 11:39 - PO Scalici picks up § 87(2)(b) black backpack on the stoop next to § 87(2)(b) left foot. PO Scalici's shadow can be seen holding the backpack in his right hand

and putting it down on the curb next to a parked van. PO Scalici repeatedly tells § 87(2)(b) to get off the property. At 11:50- PO Scalici tells PO Luo he is going to “EDP” § 87(2)(b) and PO Luo acknowledges this. PO Scalici can be heard going over the radio requesting an ambulance to their location for an EDP. At 12:20- PO Scalici asks § 87(2)(b) about her medical history again, says that EMS is coming, and he needs to let them know this information. § 87(2)(b) refuses to answer him. At 12:58- PO Scalici tells § 87(2)(b) that she is going to the hospital.

At 13:09- PO Scalici again asks for ID and § 87(2)(b) does not answer. At 13:22- PO Scalici says, “You know what, forget it. There’s no talking to her. EMS is coming, she’s getting EDP’d, that’s it.” At 14:17- § 87(2)(b) talks to PO Luo about how she felt the men were following her. At 15:22- PO Scalici tells § 87(2)(b) she needs to be psychologically evaluated, and that an ambulance is on its way. He states she is not answering any of his questions and is spitting at people. § 87(2)(b) tells PO Scalici that he is a liar. 16:45- PO Scalici picks up the black backpack and puts it down by a small fence belonging to the property that § 87(2)(b) is seated in front of. PO Scalici walks over to the men and takes a harassment report for one of them. He explains that a harassment report for both men would be taken if EMS does not deem it necessary for § 87(2)(b) to go to the hospital.

At 29:48- § 87(2)(b) is on the phone and she tries to walk forward off the stoop. PO Scalici says, “Ma’am, now, now I need you to stay.” He explains repeatedly that EMS is on the way and needs her to stay. She says, “Don’t hold me,” repeatedly. At 31:23- PO Scalici tells § 87(2)(b) she is not under arrest. She stands in front of the stoop and continues to talk on the phone. At 38:36- § 87(2)(b) tries to step past PO Luo, by moving between him and some fencing at the front of the residence. PO Luo places his left arm out, but his left hand is not visible from the BWC’s angle.

At 38:41- PO Scalici explains the situation to two EMTs. At 39:57- EMT1 greets § 87(2)(b) but she asks for a moment because she is speaking to a 911 supervisor on the phone. At 42:30- EMT1 asks § 87(2)(b) about her medical history but she refuses to provide any and explains her side of the story. At 43:25- § 87(2)(b) provides her full name to EMT2. EMT2 asks § 87(2)(b) if she wants to hurt herself and she asks what he means. EMT2 asks if she was spitting on the individuals and she says that they provoked her and, “That’s why I do whatever I did.” EMT2 asks § 87(2)(b) to leave and go about her business.

EMT2 tells § 87(2)(b) he will help her cross the street. A voice tells § 87(2)(b) that EMT2 is going to help her cross the street and tells her she can either go or this person’s lieutenant will respond, and they will take her to the hospital. At 46:56- PO Scalici, possibly speaking to EMT2 says, “...can we just throw her on the bus, what do you think?” At 47:03- EMT2 and § 87(2)(b) walk towards the corner of Quentin Road. EMT1 says to let her go but that if she is still present when the supervisor comes then “that’s it, let the boss decide.” § 87(2)(b) removes herself from the group and proceeds to walk north towards Quentin Road while EMT2 follows behind her.

PO Luo’s BWC (**Board Review 02**) is about 1:15 minutes long. PO Luo’s BWC video depicts what happened after § 87(2)(b) left the incident location. 00:40- PO Luo briefly enters the front driver seat of an RMP and then walks over to PO Scalici, who is speaking to the civilians who called 911 on the sidewalk. 01:10- PO Scalici appears to say, “She’s fucking out of her mind.”

PO Scalici was interviewed by the CCRB on March 21, 2024 (**Board Review 05**). His testimony is consistent with his BWC. During this interaction with § 87(2)(b) PO Scalici looked up her number and saw that § 87(2)(b) had an EDP history. He did not know how many previous incidents § 87(2)(b) had been a part of or the details of those individual EDP jobs. He asked § 87(2)(b) for her identification since she spat at people, which constituted a penal law violation. She was not free to go at this point as PO Scalici needed to prepare a complaint report for this. § 87(2)(b) was in a manic state as she refused to provide her ID multiple times, was “hyper-

paranoid” that people were following her, yelling, walking away from the officers, and on two separate phones talking to two different people while the officers spoke to her.

PO Scalici called EMS because he wanted a second opinion to determine whether § 87(2)(b) needed to be removed to the hospital for an evaluation. There were no other reasons to call an ambulance for § 87(2)(b). PO Scalici made the decision to call the ambulance and was the one who called it. § 87(2)(b) was never under arrest, but she was being detained for an evaluation by EMS. EMS decided § 87(2)(b) did not need to go to the hospital as she complied with what they were saying and left upon their instruction. PO Scalici was fine with § 87(2)(b) leaving as EMS evaluated her and determined she did not need to go to the hospital.

PO Scalici acknowledged telling § 87(2)(b) that if § 87(2)(b) did not provide her ID, she would go to the hospital. He told her this after she repeatedly refused to provide her ID. PO Scalici acknowledged picking up her bag and removing it from the staircase, as he wanted her to leave the stoop, but denied throwing it. PO Scalici acknowledged that while speaking with the 911 callers, he said, “she’s fucking out of her mind.” He did not direct this to § 87(2)(b) but said this as he “is a human being like everybody else,” and got frustrated with § 87(2)(b). PO Scalici said during his CCRB interview that § 87(2)(b) was not within earshot when he made the statement, and if he could, he would not have taken back what he said.

PO Luo was interviewed by the CCRB on February 22, 2024 (**Board Review 06**). His testimony was consistent with PO Scalici’s testimony. PO Luo double tapped the button on his BWC to turn it on and then exited the police vehicle; however, he later looked down and saw that his BWC was not blinking, indicating that it was not activated. He then activated it shortly before the end of this incident. PO Luo believed he did not tap the button hard enough upon initial arrival on scene, and that was the reason his BWC was not activated for most of this incident. He acknowledged this incident required BWC activation.

According to Patrol Guide Procedure 216-01 (**Board Review 07**), which outlines the general procedure when dealing with AIDED cases in place at the time, AIDED Cases are defined as “any occurrence...which requires that a person, other than a prisoner, receive medical aid or assistance,” including but not limited to, individuals who are mentally ill. It dictates “uniformed members of the service concerned shall cooperate with ambulance/hospital personnel in every reasonable manner.”

According to NYPD Patrol Guide Procedure 221-13 (Mentally Ill or Emotionally Disturbed Persons) (**Board Review 08**), an emotionally disturbed person (EDP) is a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. Officers may determine that a person that is apparently mentally ill or emotionally disturbed must be taken into protective custody because the person is conducting himself in a manner likely to result in serious injury to others. In dealing with EDPs, officers must assess the situation as to the threat the EDP poses to himself and others, attempt to slow the pace of the incident, and establish dialogue with the EDP while awaiting the arrival of specialized personnel, if necessary.

NYPD Patrol Guide Procedure 200-02 (**Board Review 09**) states that the NYPD maintains a higher standard of integrity than is generally expected of others. Additionally, it is their mission to value human life, respect the dignity of each individual and render their services with courtesy and civility.

NYPD Administrative Guide Procedure 304-06 (**Board Review 10**) prohibits members of service from engaging in conduct prejudicial to good order, efficiency, or discipline of the Department, and

from using discourteous or disrespectful remarks, including but not limited to remarks regarding another person's age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability.

NYPD Patrol Guide Procedure 212-123 (**Board Review 11**) states that all uniformed members of the service must activate BWC prior to engaging in any police action. They must record any interactions that escalate to become adversarial or may hold evidentiary value.

It is undisputed that PO Scalici told § 87(2)(b) "Give me your ID or you're going to the hospital." § 87(2)(g) was made prior to EMS being called and to get § 87(2)(b) ID. Therefore, it is recommended that **Allegation A** be closed as **Substantiated**.

PO Scalici's BWC captured the incident in its entirety. § 87(2)(g) it showed he picked up her bag and placed it on the sidewalk § 87(2)(g) Therefore, it is recommended that **Allegation B** be closed as **Unfounded**.

§ 87(2)(g) it is recommended that **Allegations C and D** be closed as **Within NYPD Guidelines**.

It is undisputed that PO Scalici told the 911 callers that § 87(2)(b) was "fucking out of her mind" after she had left the scene. § 87(2)(g) is recommended that **Allegations E and F** be closed as **Substantiated**.

§ 87(2)(g) it is recommended that **Allegation G** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- PO Scalici has been a member of service for six years and has been a subject in three other CCRB complaints and nine other allegations. § 87(2)(g) [REDACTED]
- PO Luo has been a member of service for four years and has been a subject in one other CCRB complaint and one other allegation. The complaint was withdrawn. § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] rejected mediation.
- A FOIL request for any Notice of Claim filed regarding this incident with the New York City Office of the Comptroller was sent on 04/05/2024 (**Board Review 15**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 8

Investigator:	Connie Villon	Inv. Connie Villon	4/9/2024
	Signature	Print Title & Name	Date

Squad Leader:	Ethan De Angelo	IM Ethan De Angelo	04/09/2024
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date